

SCHEDULE.

SECTION 70 OF THE POOR LAW (AMENDMENT) Act, 1844.

In any proceedings to be had before justices in petty or special sessions, or out of sessions, under the provisions of this Act or of any of the Acts required to be construed as one Act herewith, if any party to such proceedings request that any person be summoned to appear as a witness in such proceedings, it shall be lawful for any justice to summon such person to appear and give evidence upon the matter of such proceedings; and if any person so summoned neglect or refuse to appear to give evidence at the time and place appointed in such summons, and if proof upon oath be given of personal service of the summons upon such person, and that the reasonable expenses of attendance were paid or tendered to such person, it shall be lawful for such justice, by warrant under his hand and seal, to require such person to be brought before him, or any justices before whom such proceedings are to be had; and if any person coming or brought before any such justices in any such proceedings refuse to give evidence thereon, it shall be lawful for such justices to commit such person to any house of correction within their jurisdiction, there to remain without bail or mainprize for any time not exceeding fourteen days, or until such person shall sooner submit himself to be examined, and in case of such submission the order of any such justice shall be a sufficient warrant for the discharge of such person.

CHAPTER 39.

An Act to amend section thirty-two of the Salmon
and Freshwater Fisheries Act, 1923.

[10th May 1929.]

BE it enacted by the King's most Excellent Majesty,
by and with the advice and consent of the Lords
Spiritual and Temporal, and Commons, in this present

Parliament assembled, and by the authority of the same,
as follows :—

1. Section thirty-two of the Salmon and Freshwater Fisheries Act, 1923 (which prohibits the sale of trout at certain times), shall be amended by the insertion therein after subsection (1) thereof of the following subsections—

Amendment
of s. 32 of
13 & 14
Geo. 5. c. 16.

“(1A) This section shall not apply to any person buying, selling or exposing for sale, or having in his possession for sale—

(a) any trout which has been canned, frozen, cured, salted, pickled, dried or otherwise preserved beyond the limits of Great Britain and Ireland; or

(b) any trout which has been canned, frozen, cured, salted, pickled, dried or otherwise preserved within Great Britain or Ireland between the first day of March and the thirty-first day of August in any year; or

(c) any trout (not being an unclean trout) caught beyond the limits of Great Britain and Ireland; or

(d) any trout (not being an unclean or immature trout) caught within Great Britain or Ireland, if its capture by any net, instrument or device other than a rod and line was lawful at the time and in the place where it was caught.

“(1B) The burden of proving that any trout bought, sold, exposed for sale, or in the possession of any person for sale between the thirty-first day of August and the first day of March following is not bought, sold, exposed for sale, or in the possession of that person for sale in contravention of this section, shall lie on the person buying, selling or exposing for sale, or having in his possession for sale, such trout.”

2. This Act may be cited as the Salmon and Freshwater Fisheries (Amendment) Act, 1929.

Short title.

